

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR SEPTEMBER 18, 2026 AT 8:30 A.M.

These are the tentative rulings for the **FRIDAY, SEPTEMBER 18, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, SEPTEMBER 17, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0088069 CAPITAL ONE v. GONZALES, RAYMOND

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is granted as prayed. (Code of Civil Procedure section 664.6.) The dismissal entered on March 19, 2025 is vacated. Judgment in the amount of \$3,823.61 is entered against defendant Raymond Gonzales, which includes principal in the amount of \$3,240.00 plus \$583.61 in costs.

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2. M-CV-0089077 CAPITAL ONE v. PHILLIPP, CHARLES

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is granted as prayed. (Code of Civil Procedure section 664.6.)

The dismissal entered on May 2, 2025 is vacated.

Judgment in the amount of \$11,751.39 is entered against defendant Charles Phillip, which includes principal in the amount of \$11,632.78 less credits of \$405.00 plus \$523.61 in costs.

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3. M-CV-0094498 CAPITAL ONE v. PAYURAN, NIRO

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Set Aside Judgment and Dismiss Action

The motion is granted as prayed. (Code of Civil Procedure section 473(d).)

The judgment entered on March 5, 2026 is vacated and set aside.

The case is dismissed without prejudice.

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4. M-CV-0095856 CAPITAL ONE v. LAVALLEUR, CARLOS

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Defendant's Motion to Modify Dismissal

The motion is denied. There is no proof of service filed with the court showing plaintiff was served with the current motion.

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5. M-CV-0098619 MOHAJERANI, NILOUFAR v. MARK, RICHIE

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

The reserved hearing on defendant's demurrer is dropped from the calendar as no moving papers were filed with the court.

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6. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CTR

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Cross-Defendant Professional Security Consultants' Demurrer to CPT Creekside Town Center, LLC and Vestar Properties, Inc.'s First Amended Cross-Complaint (FAC-C)

Ruling on Request for Judicial Notice

Cross-defendant's request for judicial notice is granted, over objection, pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained with leave to amend.

The allegations in the first and second causes of action are deficiently pleaded, failing to allege sufficient facts to support the claims for breach of contract and negligence. (Cross-defendant's demurrer pp. 10:27-14:10; 14:13-15:26; Code of Civil Procedure section 472d.)

The second amended cross-complaint shall be filed and served September 28, 2026.

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7. S-CV-0049554 OLSEN, ERIK v. COOPER, CRAIG

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Plaintiffs' Motion to Compel Responses to Requests for Production of Documents as to Defendant Craig Cooper and Monetary Sanctions

The motion is granted.

Defendant Craig Cooper shall provide verified responses and responsive documents, without objections, to plaintiffs' requests for production of documents, set one, by September 28, 2026.

Monetary sanctions in the amount of \$1,835.00 are imposed upon defendant Craig Cooper and defendant's counsel of record, jointly and severally. (Code of Civil Procedure section 2031.300(c).)

Plaintiffs' Motion to Deem Requests for Admissions as Admitted Against Defendant Craig Cooper and Monetary Sanctions

The motion is granted.

The matters encompassed in plaintiffs' requests for admissions, set one, are deemed admitted as to defendant Craig Cooper.

Monetary sanctions in the amount of \$1,656.00 are imposed upon defendant Craig Cooper and defendant's counsel of record, jointly and severally. (Code of Civil Procedure section 2033.280(c).)

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7. S-CV-0049554 OLSEN, ERIK v. COOPER, CRAIG

Plaintiffs' Motion to Compel Responses to Form Interrogatories as to Defendant Craig Cooper and Monetary Sanctions

The motion is granted.

Defendant Craig Cooper shall provide verified responses, without objections, to plaintiffs' form interrogatories, set one, by September 28, 2026.

Monetary sanctions in the amount of \$871.00 are imposed upon defendant Craig Cooper and defendant's counsel of record, jointly and severally. (Code of Civil Procedure sections 2030.290(c).)

Plaintiffs' Motion to Compel Responses to Special Interrogatories as to Defendant Craig Cooper and Monetary Sanctions

The motion is granted.

Defendant Craig Cooper shall provide verified responses, without objections, to plaintiffs' special interrogatories, set one, by September 28, 2026.

Monetary sanctions in the amount of \$871.00 are imposed upon defendant Craig Cooper and defendant's counsel of record, jointly and severally. (Code of Civil Procedure section 2030.290(c).)

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8. S-CV-0049617 TONOPALO PRIVATE RES CLUB OWNERS ASSO v.
 ALPINE VIEW ESTATES

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Jason Hoffman, Esq.'s Motion to be Relieved as Counsel for Defendant Alpine View
Estates LLC

The motion is granted as prayed.

Jason Hoffman, Esq. shall be relieved as counsel of record for defendant Alpine View
Estates LLC upon the filing of the proof of service of the signed order after hearing on
defendant Alpine View Estates LLC.

Jason Hoffman, Esq.'s Motion to be Relieved as Counsel for Defendant Patrick Taylor

The motion is granted as prayed.

Jason Hoffman, Esq. shall be relieved as counsel of record for defendant Patrick Taylor
upon the filing of the proof of service of the signed order after hearing on defendant
Patrick Taylor.

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9. S-CV-0050967 BROOKS, KIM v. J&S CUSTOM HOMES

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

The two reserved hearings for motions to compel compliance with third party subpoenas are dropped from the calendar as no moving papers were filed with the court.

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10. S-CV-0052605 CA DEPT OF ED v. ROCKLIN UNIF SCHOOL DIST

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 3:00 P.M. in DEPARTMENT 1.**

Petition for Writ of Mandate

The appearances of the parties are required for the hearing.

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11. S-CV-0053159 ELAFIFI, OMAR v. VILLANUEVA, GREGORY

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Jeffrey Sevey, Esq.’s Motion to be Relieved as Counsel for Plaintiffs Evelyn Elafifi, Ali Elafifi, and Omar Elafifi

The motion is continued to October 2, 2026 to allow for counsel to provide updated information regarding the funds deposited in blocked account. Counsel’s declaration states that the funds for the minor were outstanding and yet to be deposited into a blocked account. The court requests a supplemental declaration regarding the status of these funds.

The supplemental declaration shall be filed by 12:00 p.m. on September 24, 2026.

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12. S-CV-0054259 FARBER, JOHN v. APPLES & HONEYBEES

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Defendants Jeffrey A. Slott and Law Offices of Jeffrey A. Slott, APC's Motion for
Sanctions Pursuant to Code of Civil Procedure section 128.7

The motion is denied.

Both requests for monetary sanctions are denied.

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13. S-CV-0054788 PEYMANEH, SOUROUSHPOUR v. CARDONA, LUPE

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Petition for Expedited Minor's Compromise as to Arvin Keshvarzian

The petition is continued to October 2, 2026 at 8:30 a.m. in Department 1. The petition refers to an Attachment 19b(2), which is not attached. The matter is continued so that petitioner can submit a supplemental declaration identifying the financial institution where the funds will be placed in a blocked account, which would have been reflected in Attachment 19b(2).

The supplemental declaration shall be filed by 12:00 p.m. on September 24, 2026.

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14. S-CV-0055258 WAMPLER, DAVID v. TAYLOR, RYAN

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Defendant Jeremy Webber's Demurrer to the Complaint

The appearances of the parties are required for the hearing.

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15. S-CV-0055378 WITT, KATHLEEN v. CITY OF COLFAX

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Defendant's reserved hearing for the motion to compel discovery is dropped from the calendar as no moving papers were filed with the court.

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16. S-CV-0055499 MILES, HEATHER v. YASSO, JAMES

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Plaintiff Heather Miles' Motion to Quash or Modify Deposition Subpoenas

The motion is continued to **NOVEMBER 6, 2026 at 8:30 A.M. in DEPARTMENT 1** to allow the parties to participate in the Informal Discovery Conference (IDC) process.

Defendant James Yasso's Motion for Leave to File Cross-Complaint

The motion is denied.

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17. S-CV-0056025 CHEEK, HOLLY v. WILLIAMS, RICHARD

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Petitioner's Motion to Reduce Lien of Behalf of Claimant

The motion is dropped as moot in light of the declaration of Brett Rosenthal, Esq. filed on September 14, 2026.

Petition for Approval for Minor's Compromise as to Skylar Cheek

The petition is granted as prayed.

If oral argument is request, the appearance of the minor at the time of the hearing is waived.

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18. S-CV-0056655 MOVSISYAN, HRACHYA v. GENERAL MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion for Attorneys' Fees, Costs, and Expenses

The motion is granted.

Plaintiff seeks \$19,699.50 in attorneys' fees and \$579.17 in costs and expenses pursuant to Civil Code section 1794(d) and Code of Civil Procedure section 998. The court has carefully considered the number of hours expended by counsel along with the hourly rates for comparable work within Placer County and awards \$17,892.50 broken down as follows:

NAME	RATE	HOURS	TOTAL
Ryan Youabian	\$425/hr	19.1	\$ 8,117.50
Bryan Geoulla	\$425/hr	18.8	\$ 7,990.00
Michael Josephson	\$350/hr	5.1	\$ 1,785.00
TOTAL		43.0	\$17,892.50

The court has carefully considered the costs and finds them to be reasonable.

In sum, plaintiff is awarded \$18,471.60, which includes \$17,892.50 in attorneys' fees and \$579.17 in costs.

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19. S-CV-0057275 COYLE, JOHN v. HUMAN BEES

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Defendant Human Bees, Inc.'s Demurrer to the Complaint

The appearances of the parties are required for the hearing.

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20. S-CV-0057546 WATSON, CARRIE v. SUTTER VALLEY HOSPITALS

The demurrer and motion to strike are continued to **OCTOBER 20, 2026 at 8:30 A.M.**
in **DEPARTMENT 32** to be heard by the **HONORABLE TRISHA J. HIRASHIMA**.

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21. S-CV-0057817 IRPO LINCOLN POLICE OFFER'S ASSO

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Petition to Compel Arbitration

The appearances of the parties are required for the hearing.

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22. S-CV-0058319 IRPO ALEKSEEVA, TATIANA

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 22, 2026 AT 2:00 P.M. in DEPARTMENT 1.**

Petition for Expedited Approval of Minor's Compromise as to Miron Alekseev

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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